

Manoj Mudgal vs Saroj Sharma on 25 September, 2012

IN THE HIGH COURT OF JUDICATURE FOR RAJASTHAN
AT JAIPUR BENCH, JAIPUR

JUDGMENT

D.B. CIVIL MISC. APPEAL NO. 3473/2012

MANOJ MUDGAL
VS.
SMT. SAROJ SHARMA & ANOTHER.

DATE OF JUDGMENT : 25.09.2012

HON'BLE MR. JUSTICE NARENDRA KUMAR JAIN-I
HON'BLE MISS. JUSTICE BELA M. TRIVEDI

Mr. Tanveer Ahmed, for the appellant.

BY THE COURT:

Defect is waived.

2. Heard learned counsel for the appellant.

3. This misc. appeal is directed against order dated 4th July, 2012 passed by the Family Court, No. 1, Jaipur, whereby an application filed by the parties, to waive the condition of minimum six months, as required under Section 13B(2) of the Hindu Marriage Act, 1955(for short 'the Act'), has been dismissed.

4. There is delay of 32 days in filing the appeal. Learned counsel for the appellant has explained the delay in the application under Section 5 of the Limitation Act contending that initially he filed writ petition before Single Bench of this Court, but when writ petition was not entertained, then present appeal was preferred.

5. We have examined the matter on merits also and in our view, there is no merit in the appeal and no useful purpose will be served in condoning the delay, but in the interest of justice, we condone the delay of 32 days in filing the appeal, subject to just exceptions. Application under Section 5 of the Limitation Act stands allowed.

6. So far as facts of the case are concerned, it appears that husband-appellant filed an Application No. 446/2011 under Section 13 of the Act before the Family Court on 27th May, 2011 for grant of

decree of divorce. However, the said application was withdrawn and another application was filed under Section 13B of the Act for divorce by mutual consent before the Family Court, on 23rd April, 2012 along with an application to grant exemption of six months condition, contending therein that time spent in earlier application under Section 13 of the Act for grant of divorce be adjusted and the condition of six months, as enumerated under Section 13B(2) of the Act, be waived. Learned Family Court vide its order dated 4th July, 2012 dismissed the application. Said order is under challenge in this appeal.

7. Submission of learned counsel for the appellant is that since the earlier application under Section 13 of the Act for grant of divorce was withdrawn on 23rd April, 2012 and on the same day, an application for divorce by mutual consent under Section 13B of the Act was filed, therefore, the application under Section 13B should have been treated in continuation of the earlier application. Earlier application was filed on 27th May, 2011, therefore, it was a fit case wherein the condition of six months, as enumerated under Section 13B of the Act, should have been waived.

8. There is no dispute between the parties that the application under Section 13B of the Act was filed on 23rd April, 2012 and as per requirement of law, consent decree of divorce cannot be passed, unless a period of six months has expired. It is also relevant to mention that there is no provision in the Act for giving any relaxation in the aforesaid minimum period of six months or to waive the said condition. The period of six months has to be counted from the date of filing of the application under Section 13B of the Act and in the present case, application under Section 13B of the Act was filed on 23rd April, 2012. In these circumstances, we find no error in the impugned order passed by the Family Court.

9. There is no merit in this appeal and the same is, accordingly, dismissed in limine. Stay application is also dismissed.

10. It is needless to mention that on expiry of period of six months, the Family Court will certainly consider the case of mutual divorce and pass necessary order in accordance with law.

(BELA M. TRIVEDI), J. (NARENDRA KUMAR JAIN-I), J.

Manoj,
S.No.S.1.

All corrections made in the judgment/order have been incorporated in the judgment/order being emailed.

MANOJ NARWANI JUNIOR PERSONAL ASSISTANT